



FUNDAMENTAL RIGHTS — FULL MIND MAP

Topic-wise · Fully Explained · Hinglish · SSC / BPSC / BSSC / Railway



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1. Fundamental Rights — Background, Nature & Part III

- Liberal democracy mein liberty ka best safeguard source key ke mutabik Separation of Powers hai; rule of law aur power-restraint liberty ko protect karte hain. [Q1]
- 1931 Karachi Congress Session ne Fundamental Rights aur National Economic Programme par resolution adopt kiya; source explanation Sardar Vallabhbhai Patel ko session president batata hai. Nehru Report (1928) ne bhi Constitution mein Fundamental Rights include karne ki advocacy ki thi. [Q2, Q3]
- Jawaharlal Nehru ne Fundamental Right ko Constitution mein permanent protection ke roop mein dekhne ki baat kahi; Dr. S. Radhakrishnan ne Fundamental Rights ko “a pledge to our people and a pact with the civilized world” kaha. [Q4, Q5]
- Fundamental Rights justiciable/enforceable hain, personality development ke liye essential bataye gaye hain aur Part III mein enumerated hain. Source ke mutabik Emergency mein rights suspend ho sakte hain, lekin Articles 20 aur 21 suspend nahi kiye ja sakte. [Q6, Q7, Q8, Q9, Q10]
- Article 13 pre-constitutional aur post-constitutional laws ko Fundamental Rights se inconsistent hone ki extent tak void karta hai; source isse Constitution ki paramountcy regarding Fundamental Rights se jodta hai. [Q11, Q12]

2. Right to Equality — Articles 14–18

- Right to Equality Articles 14–18 mein hai: Article 14 equality before law/equal protection; Article 15 non-discrimination; Article 16 public employment mein equality of opportunity; Article 17 untouchability abolition; Article 18 titles abolition. [Q13, Q14]
- Article 14 “equality before law” aur “equal protection of laws” deta hai. Unguided/uncontrolled discretionary power aur unequal application of law ko source Article 14 ke violation se link karta hai. Rule of Law ka core — koi bhi law se upar nahi. [Q15, Q16, Q17, Q18, Q19]

- Religion, race, caste, sex ya place of birth ke grounds par discrimination ka prohibition Article 15 ke under Right to Equality ka part hai. Economic equality ko source six/equality guarantees ke listed Fundamental Right ke roop mein include nahi karta. [Q20, Q25]
- Source Assertion–Reason mein unequal persons ko level playing field ke liye differently treat karna aur equals ke saath equal law administer karna compatible principles bataye gaye hain. [Q26]

3. Reservation & Public Employment — Articles 15–16

- State of Madras v. Champakam Dorairajan ke baad First Constitutional Amendment, 1951 se Article 15(4) add hua — socially/educationally backward classes aur SC/ST ke advancement ke liye special provisions. [Q21]
- Article 15(5) educational institutions — including source wording ke mutabik private aided/unaided institutions — mein reservation-related special provision se linked hai; source 93rd Amendment Act, 2005 ka reference deta hai. [Q22]
- OBC/backward-class reservation framework source mein Article 15(4) aur Article 16(4) se linked hai. Article 16(1)–(2) public employment mein equality of opportunity/non-discrimination ko cover karta hai. [Q23, Q24]
- Source ke mutabik Article 16(4) reservation policy ko Article 335 ke “maintenance of efficiency of administration” background mein interpret kiya gaya, lekin Article 335 “efficiency” term define nahi karta. 77th Amendment Act, 1995 ne Article 16(4A) insert karke SC/ST promotion reservation enable kiya. [Q27, Q28]
- Equal pay for equal work ko source Supreme Court reasoning mein Preamble ke “Socialist”, Articles 14 & 16 aur Article 39(d) ko saath padhkar deduce kiya gaya; Randhir Singh case ka reference diya gaya hai. [Q29, Q30]

4. Article 17 — Abolition of Untouchability

- Article 17 untouchability ko abolish karta hai aur uski practice ko kisi bhi form mein forbid karta hai. Source is provision ko Right to Equality ka part aur SC/ST dignity/socio-economic-political-cultural rights se linked principle batata hai. [Q31, Q32, Q33, Q34, Q35, Q36, Q37]
- Untouchability abolition ke liye source laws, education improvement aur public awareness ko measures maanta hai; Protection of Civil Rights Act, 1955 ka reference diya gaya hai. Structural violence Assertion–Reason mein untouchability aur religious sanctions ko linked bataya gaya hai. [Q38, Q39]

! EXAM TRAP — Q40 — Disputed Question

- ▶ Source ne Q40 ko “Disputed Question” mark kiya hai. Articles 14, 15, 16, 19 ko do tarah se classify kiya ja sakta hai. [Q40]
- ▶ Category-wise Article 19 alag hai (Right to Freedom), jabki 14–16 Right to Equality mein hain; person-vs-citizen test par Article 14 alag ho sakta hai, kyunki source 15, 16 aur 19 ko citizen-only batata hai. [Q40]

5. Right to Freedom — Article 19

- Right to Freedom source mapping mein Articles 19–22 cover karta hai. Article 19(1) six freedoms deta hai: speech/expression, peaceful assembly without arms, association/union/co-operative society, movement, residence/settlement, aur profession/occupation/trade/business. Property wali old freedom Article 19(1)(f) source ke mutabik 44th Amendment se remove hui. [Q41, Q42]
- Freedom of speech & expression Article 19(1)(a) se linked hai. Source freedom of press/newspapers ko isi clause ka part maanta hai, separate express constitutional right nahi; private building par National Flag hoist karna bhi Supreme Court holding ke through Article 19(1)(a) se linked bataya gaya hai. [Q43, Q44, Q45, Q46, Q47, Q48]
- Peaceful assembly without arms Article 19(1)(b) ke under hai; source ke mutabik officials ka gherao is freedom ka protected part nahi. [Q49]

- Article 19(2) speech/expression par reasonable restrictions ke grounds source mein sovereignty & integrity, security of State, friendly relations, public order, decency/morality, contempt, defamation aur incitement context se linked hain; “unbecoming criticism” source key mein restriction ground nahi hai, aur Q51 key Security of State + Defamation + Public Order ko select karta hai. [Q50, Q51]

6. Article 21 — Life, Liberty & Privacy

- Article 21 life and personal liberty protect karta hai. Source “due process” interpretation ko Article 21 se link karta hai aur foreign travel ko bhi Article 21 protection ke under rakhta hai. [Q52, Q53, Q54]
- Maneka Gandhi (1978) ke baad source judicial interpretation ke mutabik Article 21 ki procedure fair/reasonable honi chahiye; Q55 mein petitioner par arbitrariness prove karne ka burden wali statement incorrect answer hai. [Q55]
- Source Supreme Court-recognised rights mein shelter, travel abroad aur equal pay for equal work list karta hai. Privacy ko Article 21 aur Part III freedoms se intrinsic right ke roop mein place kiya gaya hai. [Q56, Q57, Q58, Q59, Q60]
- Person of one’s choice se marriage ko Article 21 safeguard se link kiya gaya hai. Q62 source key capital punishment ko Article 21 purview ke bahar option ke roop mein choose karta hai. National Emergency mein life & personal liberty source ke mutabik suspend/restrict nahi ki ja sakti. [Q61, Q62, Q63]
- Unnikrishnan v. Andhra Pradesh decision ko source Article 21 ke scope mein Right to Education include karne se link karta hai. [Q64]

7. Article 21A — Right to Education

- 6–14 years age group ke children ke liye Right to Education source ke mutabik Fundamental Right hai. Source Q66 answer date 1 April 2010 deta hai; Q67 ise human right aur fundamental right dono maanta hai. [Q65, Q66, Q67]
- Education Assertion–Reason mein State ki free & compulsory education duty aur democratic society mein development ke liye education ki indispensability — dono true aur reason explanatory maana gaya hai. [Q68]

8. Article 20 — Protection in Respect of Conviction

- Article 20 criminal-conviction safeguards se linked hai. Source “prohibition against torture” ko Article 20 ka listed part nahi maanta. [Q72]
- Article 20 protections mein double jeopardy aur self-incrimination source questions ka focus hai: same offence ke liye more than once prosecuted/punished nahi; Article 20(3) accused ko khud ke against witness banne ke liye compel karne se protect karta hai. [Q76, Q77, Q78]

9. Article 22 — Arrest & Preventive Detention

- Arrested person ke safeguards Article 22 se linked hain. Source Q80 mein Article 22(2) ko “Parliament may prescribe detention beyond three months” se match karna incorrect bataya gaya hai. [Q79, Q80]
- Source Preventive Detention questions mein without trial detention ka standard answer 3 months diya gaya hai. [Q81, Q82]
- Q83 mixed statements mein source key “Only one” correct statement choose karta hai; explanation preventive detention/legal counsel aur POTA confession issues discuss karta hai. Parole question mein source State Governments ke apne parole rules ko correct maanta hai, lekin parole ko absolute right nahi. [Q83, Q84]

10. Right against Exploitation — Articles 23–24

- Right against Exploitation mein source human trafficking/forced labour prohibition (Article 23) aur child employment prohibition (Article 24) ko core provisions maanta hai; untouchability aur minority interests is category ka part nahi. [Q69]

- Children ko hazardous factories/mines/work mein employ karne ka prohibition Article 24 se directly linked hai; source ise absolute prohibition ke roop mein describe karta hai. [Q70, Q71, Q73, Q74]
- Source Q75 ICCPR mein Child Rights ko Article 24 se match karta hai. [Q75]
- Bonded Labour System (Abolition) Act source ke mutabik 1976 mein enact hua; child labour hazardous employment prohibition ko Constitution Article 24, international protection aur M.C. Mehta v. State of Tamil Nadu (1996) context se link kiya gaya hai. [Q158, Q159]

11. Right to Freedom of Religion — Articles 25–28

- Article 25 freedom of conscience aur religion ko profess, practice, propagate karne se linked hai. Source Sikh kirpan carrying ko Article 25 protection mein include karta hai; social reform laws ki State power bhi source framework ka part hai, lekin conversion by religious bodies ko unlimited right nahi bataya gaya. [Q85, Q86, Q87]
- Source Article 25 explanation mein “Hindu” expression ke constitutional inclusion context mein Parsis ko included nahi maanta. Q89 source key “Humanism” ko Article 25 restriction ground nahi batata. [Q88, Q89]
- Article 26 religious affairs manage karne ki freedom ko source Public Order, Morality aur Health restrictions se subject batata hai. [Q90]

12. Cultural & Educational Rights — Articles 29–30

- Article 29 minority language/culture protection context se linked hai; minority educational institutions establish/administer karne ka right Article 30 mein hai. Isliye Article 29 ko institution-establishment right se match karna source Q91 mein incorrect hai, aur Article 31 match bhi wrong hai. [Q91, Q92, Q93, Q94]
- Source Assertion–Reason: Article 30 “minorities” term define nahi karta; Constitution religious aur linguistic minorities recognise karta hai, lekin reason ko assertion ka correct explanation nahi maana gaya. [Q95, Q96]
- National minority status ke source question mein educational institutions establish/administer karna aur PM 15-Point Programme benefit correct advantages bataye gaye; automatic Lok Sabha nomination nahi. [Q157]

13. Article 32 — Constitutional Remedies & Writs

- Fundamental Rights enforce karne ki power source Supreme Court aur High Courts/Judiciary se link karta hai; Supreme Court ko guardian/protector of Fundamental Rights aur Constitution bataya gaya hai, President ko guardian kehna incorrect. [Q97, Q98, Q99, Q100, Q101, Q102]
- Article 32 Fundamental Rights enforce karne ka remedy hai. Dr. B.R. Ambedkar ne Article 32/Right to Constitutional Remedies ko Constitution ka “Heart and Soul” kaha — source Assertion–Reason mein effective remedy is description ko explain karta hai. [Q103, Q104, Q105, Q106]
- Article 32 ke under Supreme Court Habeas Corpus, Mandamus, Prohibition, Quo Warranto aur Certiorari issue kar sakta hai; source Q107 Parliament ko law se other courts ko specified power confer karne ki possibility bhi correct maanta hai. [Q107, Q108]
- Habeas Corpus personal liberty ka greatest safeguard aur liberty secure karne wala writ hai. Source writ meanings match: Habeas Corpus = “let us have the body”; Mandamus = “we command”; Quo Warranto = “by what authority”; Certiorari = “to be more fully informed”; Prohibition subordinate court direction context. [Q109, Q110, Q111, Q112]
- Source Q113 “Prohibition — To be certified” ko incorrect match batata hai. Certiorari ko “postmortem” remedy kaha gaya; Mandamus executive/person/institution ko public duty perform karne ka command hai. [Q113, Q114, Q115, Q116]

14. Article Mapping — Match-the-Following

- Master map: Equality = Articles 14–18; Freedom = 19–22; Exploitation = 23–24; Religion = 25–28; Cultural/Educational = 29–30; Constitutional Remedies = Article 32. Source matching Q117 isi map ko test karta hai. [Q117]
- Source Q118 matches Article 16(2) with public appointment non-discrimination, Article 29(2) with admission non-discrimination, Article 30(1) with minority educational institutions, aur old Article 31(1) with property deprivation wording. [Q118]
- Protection against arrest/detention ko Article 23 se match karna wrong hai; source matching: Abolition of Titles = Article 18, Religious Affairs = Article 26, Minority Language = Article 29, Right to Education = Article 21A. [Q119, Q120]
- Source Q121 match: Fundamental Duties = 42nd Amendment; Parliament can amend Fundamental Rights = Kesavananda Bharati; Doctrine of Basic Structure = Minerva Mills; trafficking prohibition = Article 23. [Q121]

15. FR vs DPSP — Amendment & Basic Structure Cases

- Source Q122 ke statement set mein Part III ka U.S. Bill of Rights influence correct maana gaya; “Right to Die is a Fundamental Right”, “complete federal Constitution”, aur “Fundamental Rights can be removed” statements incorrect key kiye gaye. [Q122]
- State of Madras v. Champakam Dorairajan (1951) ko source FR vs DPSP conflict mein Fundamental Rights prevalence se link karta hai. [Q123]
- Source Q124 Parliament ko Fundamental Rights amend karne ka right Kesavananda Bharati case se link karta hai. Case chronology: Shankari Prasad → Sajjan Singh → Golaknath → Kesavananda Bharati. [Q124, Q125]
- Basic Structure Doctrine source ke mutabik Kesavananda Bharati v. State of Kerala mein propounded/outlined hua. Another chronology: A.K. Gopalan → Golaknath → Kesavananda Bharati → Minerva Mills. [Q126, Q127, Q128]

16. Right to Property — Article 300A

- Right to Property originally Fundamental Right framework ka part tha, lekin 44th Constitutional Amendment Act, 1978 ke baad source ise Fundamental Right se remove karke Article 300A ke under Legal Right batata hai. [Q129, Q130, Q132, Q133, Q135]

EXAM TRAP — Q131 — Multiple Correct Answers

- ▶ Source ne Q131 ko “Multiple Correct Answers (C & D)” mark kiya hai: Statutory Right aur Legal Right dono options accepted dikhaye gaye hain. [Q131]
- ▶ Adjacent source questions repeatedly current position ko Legal Right / Article 300A batate hain. [Q129, Q130, Q132, Q133, Q135]

- Article 301 trade, commerce and intercourse se linked hai — source Q134 ke mutabik property right nahi. 44th Amendment ne Article 19(1)(f) omit aur Article 300A insert kiya; source amendment ko Janata Party Government period se link karta hai. [Q134]
- 44th Amendment/1978 ko source repeatedly Right to Property ko Fundamental Rights list se delete/abolish karne se link karta hai. [Q136, Q137, Q138, Q139, Q140, Q141]
- Isliye current source questions mein Right to Property “not a Fundamental Right” answer hai. [Q142, Q143]

17. What Is / Is Not a Fundamental Right

- Source Q144 ke mutabik “Right to Protest” six Fundamental Rights mein separate listed right nahi. Q145 “Right of Equal Shelter” ko Constitution-granted right ke roop mein reject karta hai. [Q144, Q145]
- Right to Information Constitution mein expressly listed Fundamental Right nahi; source Supreme Court interpretation ke through ise Article 19(1)(a) freedom of speech/expression mein locate karta hai. [Q146]

- *Bijoe Emmanuel v. State of Kerala* context mein source ke mutabik kisi ko National Anthem gaane ke liye compel nahi kiya ja sakta; Article 19(1)(a), Article 25(1) aur no legal compulsion reasoning ko Q147 support karta hai. [Q147]

18. Citizens vs Foreigners — Who Gets Which Rights

- Source Q148 citizen-only set mein Freedom of Speech/Expression aur Minority Right choose karta hai. Q149 explanation citizen-only Fundamental Rights ko Articles 15, 16, 19, 29, 30 se link karta hai, jabki marked option 15, 16, 19, 30 hai. [Q148, Q149]
- Foreign citizen ke liye Article 19 expression freedom available nahi — source Q150 ka answer. Article 14 Equal Protection of Law “all persons” ke liye available bataya gaya hai. [Q150, Q151]
- Source Q152 key discrimination protection, free movement aur election contest ko all-person rights nahi maanta; Q153 Constitutional Remedies ko non-citizens ke liye bhi available right batata hai. [Q152, Q153]
- British citizen in India source ke mutabik Article 19(1)(g) wala Freedom of Trade & Profession claim nahi kar sakta; same point three questions mein repeat hua hai. [Q154, Q155, Q156]

19. Rights, Duties, Right to Service & Citizen Charter

- Sir Ernest Barker quote source mein: “Rights without duties are like men without shadows.” Rights aur Duties ko correlative/two faces of same thing bataya gaya hai. [Q160, Q161]
- Source Q162 rights ko citizens ke State ke against claims aur State power par restrictions/guarantee against State action ke roop mein explain karta hai. [Q162]
- Right to Service concept source ke mutabik Great Britain se originate hua; time-bound public-service delivery se linked hai. Source Madhya Pradesh ko 25 Sept 2010 first State aur Bihar ko 15 Aug 2011 second State batata hai. [Q163]

EXAM TRAP — Q164 — Source Answer/Explanation Tension

- ▶ Q164 marked answer: “To create effective hearing system of public demands” = Citizen Charter ka aim NOT. [Q164]
- ▶ Lekin source explanation ki last line isi item ko aim ke roop mein phrase karti hai; is internal inconsistency ko yahan silently reconcile nahi kiya gaya. [Q164]